

Writ Petition No: 20837/2013

Jahangir Cheema.

S.H.O. etc.

2. 02.9.2013. Ms. Rabbiya Bajwa, Advocate for the petitioners.
Mr. Muhammad Maqsood ul Hassan, Assistant
Advocate General with Faiz Ahmad, A.S.I.
Mian Muhammad Mudassar Bodla, Advocate for
respondent No.2.

Through the instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 read with Section 561-A Cr.P.C. the petitioners have prayed that F.I.R bearing No.292 dated 27.7.2013, offence under sections 324/427/279 P.P.C. registered against the petitioners at Police Station Cantt, Sargodha be quashed.

2. Briefly, the facts out of which present petition arises are that the petitioners are accused in crime report No.292 dated 27.7.2013 for offences under sections 324, 427, 279 P.P.C. registered at Police Station Cantt, Sargodha. According to the petitioners, this crime report was registered against the petitioners on the basis of political victimization as complainant is son of sitting MNA of ruling party whereas the petitioners are close relatives of rival party.

3. It has been argued by the learned counsel that the petitioners have not committed any offence as alleged in the F.I.R. and the same had been lodged with intend to

create difficulties for the petitioners; that F.I.R. has been lodged with *malafide* and due to political rivalry and as such the same may be quashed.

4. On the other hand, learned counsel for respondent No.2 argued that from the allegation narrated in the F.I.R. obviously constitutes the offence as specified in the F.I.R.; that the investigation is at initial stage and this Court should not interfere in the investigation, duly carried out by the Investigating Officer and that the allegations in the crime report are going to be proved or not through evidence before a competent court of law and as such the instant petition may be dismissed.

5. The learned Law Officer, under instructions, states that the petitioners were found guilty in the initial investigation and case property, Kalashnikov has also been recovered from petitioner No.1 and as such the allegations contained in the F.I.R. depicts that the offence is made out.

6. According to the prosecution story, petitioner No.2 while driving car, crossed car of the complainant resulting into scratching on left side of complainant's car upon which hot words were exchanged between the complainant and petitioner No.2 but to settle the dispute, the complainant and petitioner No.2 went to Umar Park, where petitioner No.1 while armed with Kalashnikov made two fire shots upon the complainant when he was de-boarding from his car which were hit at left side of front tyres of the car. Later on, the petitioners extended life threats to the complainant and gave him slaps and

fist blows. The contention of the petitioners' counsel that they have not caused any injury to the complainant and offence under section 324 P.P.C. is not attracted in the instant case rather F.I.R. was lodged maliciously with intent to cause difficulties to the petitioners are question of facts which can only be adjudicated by producing the evidence before a court of competent jurisdiction. Even otherwise, the question whether the incident has been taken in the same manner as stated by the petitioners would necessarily call for holding of a factual inquiry and the said exercise cannot be conducted by this Court in present writ petition through summary proceedings under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. After registration of the case, investigation of a case is a statutory right of the police and the courts are always reluctant in interfering with the same, therefore, the petitioners have an alternate remedy by way of filing application under Section 249-A Cr.P.C. if the challan is submitted before the court of competent jurisdiction. The Apex Court in the case of **Col. Shah Sadiq v. Muhammad Ashiq** (2006 S C M R 276) after elaborate consideration of the provisions of the Criminal Procedure Code and Police Rules of 1934 held that High Court has no jurisdiction to resolve the disputed question of fact in the Constitutional jurisdiction and the F.I.R. during the investigation cannot be quashed. In the case of **Shahnaz Begum v. The Hon'ble Judges of the High Court of Sind and Baluchistan and another** (PLD 1971 SC 677) a Full Bench of the August Supreme Court of Pakistan held that the High Court cannot interfere in the investigation

undertaken by the police and same view is affirmed in the case of **Dr. Ghulam Mustafa v. The State and others** (2008 S C M R 76) wherein it has also been held that:-

“High Court had no jurisdiction whatsoever to take the role of the investigating agency and to quash the F.I.R. while exercising constitutional power under Article 199 of the Constitution or under Section 561-A, Cr.P.C. unless and until very exceptional circumstances exists.”

7. The facts already revealed and stated hereinabove, of course, disclose some private vengeance on both the parties. At this stage, it would be premature to say that the allegations are genuine or otherwise, as the investigation is still in pipeline. Admittedly the matter is at initial stage of investigation and the case has not yet to be sent to the competent court. However, if the case after investigation is sent to the court for trial and the petitioners are challaned, they can avail remedy before the learned trial court by filing an application under section 249-A Cr.P.C for their acquittal.

8. For what has been discussed above, this petition has no force and the same is hereby **dismissed**.

(Aalia Neelum)
Judge

Approved for reporting.

Judge